



**NIXON
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April 14, 2017

VIA FIRST CLASS MAIL

Ms. Rachel Dickon
Assistant Secretary of Federal Maritime Commission
800 North Capitol St.
Room 1046
Washington, D.C. 20573

Re: Docket No. 15-11 – Ovchinnikov v. Hitrinov

Dear Ms. Dickon:

Enclosed for filing in the above-captioned matter are an original true copy and five (5) additional copies of:

1. Nixon Peabody's Opposition to Respondents' Motion for Further Extension of Time

If you have any questions, please do not hesitate to contact me.

Best regards,

Eric Jeffrey

Enclosures

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

DOCKET NO. 15-11

IGOR OVCHINNIKOV, ET AL

v.

MICHAEL HITRINOV ET AL

Consolidated With

DOCKET NO. 1953(I)

KAIRAT NURGAZINOV, ET AL

v.

MICHAEL HITRINOV ET AL

**NIXON PEABODY'S OPPOSITION TO RESPONDENTS'
MOTION FOR FURTHER EXTENSION OF TIME**

The undersigned reluctantly opposes Respondents' motion for yet another stay of the due date for their response to the motion to withdraw. It is always an unhappy situation when lawyer and client come to loggerheads, but it does happen (although never before to the undersigned). The reasons why the Commission should deny the requested extension are: (i) the undersigned no longer has any ethical obligation or authority to represent Respondents, as the scope of his engagement did not include any work after the Initial Decision, so a motion appears no longer necessary, and (ii) there is no basis to believe that an extension will have any beneficial effect on resolving the underlying dispute. I elaborate below.

1. **A Ruling on the Motion is no Longer Necessary.** A lawyer's obligation and authority to represent a client is of course limited to the scope of his employment by the client. A lawyer hired for a tax matter may not, without further attorney-client agreement, be required to address a matter of labor law, nor should he or her. A lawyer hired for one lawsuit is not thereby authorized or obligated to litigate another matter. Here, the scope of the undersigned's employment was specifically agreed to apply only to litigation before the Presiding Officer, and then only through his issuance of a ruling on the Motion for Judgment on the Pleadings. Any further representation was expressly contingent on mutual agreement between Respondents and Nixon Peabody. Nixon Peabody's authority and obligation thus ended when the Presiding Officer issued his Initial Decision on March 9, 2017. No further agreement to extend the representation has been reached.¹ Accordingly, there is no longer any ethical obligation of representation that would necessitate a motion to withdraw or permit the Commission to require the undersigned to undertake a representation to which he never consented.

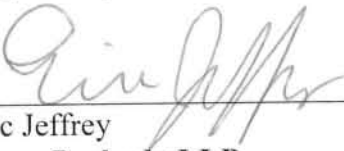
2. **In any Event, There is no Basis for an Additional Extension.** Respondents' response was originally due on November 23, 2016. Three extensions later – two granted by the Presiding Officer and one granted by the Commission – the due date has now become April 17, 2017. The undersigned believes that enough is enough, and that there is no good reason for any further extension.

The reason for the prior extensions was the hope that they would lead to resolution of the ongoing dispute over the compensation remaining owed to Nixon Peabody. Without airing any possibly dirty laundry, it is fair to say that the gap is, and has remained, substantial. If progress

¹ The undersigned's somewhat limited participation in Respondents' two procedural responses before the Commission was done pursuant to agreements between Respondents and the undersigned specific to each of those responses.

has been made, it is not sufficient to warrant any belief that the fourth time will be the charm, especially as the new request extends beyond the due date for Respondents Reply to Exceptions. As I am neither obligated nor able to prepare that Reply, the time could better be used in identifying a new attorney to do so.

Respectfully submitted,


Eric Jeffrey
Nixon Peabody LLP
799 9th Street, N.W., Suite 500
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Dated: April 14, 2017

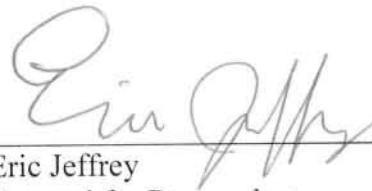
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing Nixon Peabody's Opposition to Respondents' Motion for Further Extension of Time by U.S. Mail, First-Class, Postage Prepaid and E-Mail to the following:

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Seth M. Katz, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Date: April 14, 2017

A handwritten signature in cursive script, appearing to read "Eric Jeffrey", is written over a horizontal line.

Eric Jeffrey
Counsel for Respondents